The Metropolitan Tribunal
Archdiocese of Boston

BRIEFER
Process

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BostonCatholic.org
Archdiocese of Boston

PETITION FOR A DECLARATION OF NULLITY
BRIEFER PROCESS

Please submit this form by mail to the **METROPOLITAN TRIBUNAL** *at the following address:*
66 Brooks Drive, Braintree, MA 02184-3839.

WHAT IS IT? The Briefer Process of marriage nullity, introduced by *Mitis Iudex Dominus Iesus* (2015), is an expedited canonical procedure used when the nullity of a marriage is evident and both parties consent to it. This process requires clear proofs, reliable witnesses, and full agreement of the spouses to proceed, aiming to reach a just and swift resolution without compromising the integrity of justice.

- **CONDITIONS FOR ADMITTANCE:** A Briefer Process may be admitted only when **ALL** the following conditions are clearly and fully verified; otherwise, the petition shall *ipso iure* proceed as a Formal Ordinary Process in accordance with the norms of canons 1671–1679.

Please review and check all that apply:

☐ **Sponsor Requirement** – The case must have a Sponsor, preferably the pastor of the parish. (Reference*: Dignitas Connubii* art. 113 §2 — *"The tribunal is to encourage the faithful to approach their proper pastor or another suitable person for assistance in preparing the libellus."*)

☐ **Form and Content of the Libellus** – The petition (libellus) must be presented briefly, fully, and clearly, expressing the object of the nullity, the facts on which it is based, and the supporting proofs. (Reference: can. 1504.)

☐ **Duration of Common Life** – The marriage should have been of brief duration, typically interpreted as up to five years of conjugal life. (Reference: *Mitis Iudex Dominus Iesus,* art. 14 §1 ["a brief conjugal cohabitation"]).

☐ **Witnesses** – There must be at least two reliable witnesses who are willing and able to testify in person before the Tribunal. (Reference: can. 1526 §2, 2°).

☐ **Consent of Both Parties** – Both spouses must consent to the petition and appear in person before the Court at a judicial hearing, during which their signatures and testimonies are collected. (References: cann. 1683–1687).

☐ **Participation of the Respondent** – The Respondent must expressly agree to the use of the Briefer Process and to personal participation. If the Respondent disagrees or refuses to appear, the case must proceed under the Formal Ordinary Process. (References: cann. 1683–1687).

☐ **Clear and Evident Circumstances of Nullity** – The case must present clear circumstances of things and persons that point evidently to the nullity of the marriage, supported by documentary or testimonial proofs submitted by the time of the judicial hearing. (References: *Mitis Iudex Dominus Iesus*, art. 14 §1; can. 1683 §2).

☐ **Right of Defense** – The right of defense must be fully safeguarded. If, at any stage, the Respondent retracts consent or new doubts arise regarding nullity, the case must automatically change to the Formal Ordinary Process. (Reference: can. 1620, 7°).

- **SPONSOR'S ACKNOWLEDGMENT:** I, the undersigned Sponsor, acknowledge that I have reviewed and understand the above requirements for the admittance of a Briefer Process, and I affirm that these conditions have been clearly explained to the Petitioner(s).

Signature of Sponsor: _____ Date: _____
REQUIRED REQUIRED

- **DOCUMENTS REQUIRED:**

☐ **Baptismal Record of the PETITIONER**
with notations, dated within the last 6 months

☐ **Baptismal Record of the RESPONDENT**
with notations *(only if the PETITIONER was not baptized in the Catholic Church prior to the wedding)*

☐ **Two or more WITNESSES**
A witness must be someone who personally knew the parties before and at the time of their consent and can provide clear, truthful, and specific testimony about the circumstances relevant to the petition. Ideally, witnesses are individuals—such as relatives, friends, or others close to the couple—who observed their relationship during courtship and early marriage, and who can offer firsthand knowledge regarding the parties' intentions, maturity, and understanding of marriage. They must be able and willing to testify orally and in person before the Tribunal, speaking with clarity and honesty about the facts within their knowledge.

☐ **Civil Marriage Certificate**
issued by a civil authority or city hall, including the name and title of the individual who officiated the wedding

☐ **Final Divorce Decree**
(CDA in Massachusetts) The Final Divorce is typically decreed 90 days after the court date

☐ **Church Marriage Certificate**
if applicable

☐ **Documents of PREVIOUS MARRIAGES**
Civil Marriage Certificate, Final Divorce Decree (CDA), and any other document, if applicable

and ALL OTHER NECESSARY DOCUMENTS
which can be used as evidence to the present case

PETITIONER *(you)*	**RESPONDENT** *(your former spouse)*
FULL NAME	FULL NAME
☐ MALE ☐ FEMALE	☐ MALE ☐ FEMALE
FULL MAILING ADDRESS	FULL MAILING ADDRESS
PHONE NUMBER	PHONE NUMBER
EMAIL	EMAIL
BIRTH DATE – month/day/year	BIRTH DATE – month/day/year
DATE OF BAPTISM – month/day/year	DATE OF BAPTISM – month/day/year
CHURCH OF BAPTISM and address	CHURCH OF BAPTISM and address
RELIGION at the time of this marriage	RELIGION at the time of this marriage

PETITIONER	RESPONDENT
DATE and PLACE of reception into the Catholic Church (if applicable)	DATE and PLACE of reception into the Catholic Church (if applicable)
Are you enrolled in the Rite of Christian Initiation of Adults currently? ☐ YES ☐ NO	Is he/she enrolled in the Rite of Christian Initiation of Adults currently? ☐ YES ☐ NO

IS THE RESPONDENT STILL LIVING? ☐ YES ☐ NO

ABOUT THE MARRIAGE (to be declared null)

Wedding Date:	Church/Location:
City, State, Country:	Wedding presided by (full name):

Who presided at the wedding?

☐ A Roman Catholic BISHOP / PRIEST / DEACON
☐ Other Religious Official
☐ Judge, Justice of the Peace
☐ Another person:

Check all that apply:

☐ The Marriage happened in the Archdiocese of Boston
☐ The PETITIONER currently lives in the Archdiocese of Boston
☐ The RESPONDENT currently lives in the Archdiocese of Boston
☐ Both WITNESSES (essential to prove this case) reside in the Archdiocese of Boston

If the wedding took place apart from a Catholic ceremony without the permission of the Catholic Church, was it later celebrated (convalidated) by the Catholic Church?

☐ YES ☐ NO

If yes, provide details:

How long did the couple live together before the church marriage?	How long did the couple live together after the church marriage?
When did the final separation happened?	When was the civil divorce?
How many children were born of this union?	Are there other children?

PETITIONER	RESPONDENT
Was this your first marriage? ☐ YES ☐ NO	Was this his/her first marriage? ☐ YES ☐ NO
If NO, please provide more detail:	If NO, please provide more detail:
Age of the Petitioner at the time of marriage:	Age of the Respondent at the time of marriage:

Has this case EVER been presented to another Tribunal?	
☐ YES	☐ NO
If YES, please provide details (which Tribunal, Date, what happened)	

I DO HEREBY SOLEMNLY SWEAR THAT THE INFORMATION CONTAINED IN THIS DOCUMENT IS TRUE, TO THE BEST OF MY KNOWLEDGE, SO HELP ME GOD.

Signature of the Petitioner

Date

Signature of the Sponsor

Date

INFORMATION ABOUT THE SPONSOR

PRINTED NAME OF THE PRIEST / DEACON / PASTORAL ASSOCIATE:	
SPONSOR'S PHONE NUMBER:	SPONSOR'S EMAIL ADDRESS:
NAME OF THE PARISH:	MAILING ADDRESS OF THE PARISH:

ADDITIONAL INFORMATION:

LIBELLUS (the official petition)

I, the Petitioner in this case of marriage nullity, do solemnly swear before God that all the information contained in this *Libellus* is true, complete, and offered in good conscience.

Signature of the Petitioner

Date

PETITION (clear, simple and obvious)

The reasons why I believe my marriage to the Respondent was invalid from the very beginning are:

WITNESSES (at least two)

WITNESS #1 (REQUIRED)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THIS PERSON SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #2 (REQUIRED)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THIS PERSON SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #3 (OPTIONAL)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THIS PERSON SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #4 (OPTIONAL)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THIS PERSON SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

AFFIRMATION OF PARTICIPATION AND SUPPORT BY THE RESPONDENT

I, the Respondent in this petition for a declaration of nullity of marriage,
hereby affirm that I am fully aware of the contents and purpose
of the *Libellus* submitted to the Metropolitan Tribunal.
I freely and willingly offer my full participation in these proceedings,
including attendance at a judicial hearing,
and I am prepared to provide any evidence (such as documents and witnesses)
that may support the petition for nullity.
I express my full agreement with the petition
and offer no opposition to the matters presented therein.
I sincerely believe that our matrimonial bond was null from the beginning,
under the conditions described in the *Libellus*.
Finally, I understand that if I fail to participate or if any opposition arises at any stage,
this case will automatically proceed as a Formal Ordinary Process
in accordance with the norms of canons 1671–1679.

Signature of the Respondent

Date

NON-PARTICIPATION OR OPPOSITION BY THE RESPONDENT

I, the Respondent in this petition for a declaration of nullity of marriage,
hereby affirm that I am aware of the contents and purpose
of the *Libellus* submitted to the Metropolitan Tribunal.
At this time, I either choose not to participate in the Briefer Process
or I express my opposition to the petition and/or to the use of the Briefer Process.
I understand that my decision not to participate or my opposition
does not invalidate or prevent the continuation of this petition.
I further acknowledge that, in light of my position,
the Metropolitan Tribunal will transfer this case to the
Formal Ordinary Process, in accordance with the norms of canons 1671–1679.
I also understand that this process does not exclude my right to participate,
but rather allows the Tribunal to study the petition more thoroughly and to request additional
evidence if needed, in the pursuit of truth and justice.

Signature of the Respondent

Date

REQUEST FOR ACCEPTANCE OF THE PETITION

In accordance with Canon Law, I respectfully request that the
Metropolitan Tribunal of the Archdiocese of Boston
submit this case to the Archbishop of Boston for consideration under the Briefer Process.
I acknowledge and understand all the conditions pertaining to this petition, and I am fully aware that, should it be deemed necessary for the pursuit of truth and the attainment of moral certainty, the Metropolitan Tribunal may transfer this case to the Formal Ordinary Process.

Signature of the Petitioner

Date

Signature of the Sponsor

Date

FOR TRIBUNAL USE ONLY

APPROVAL OF CASE INSTRUCTOR:	DATE OF ACCEPTANCE: